

Mahaveer @ Vilas Shanthappa @ ... vs Sukumar Tulajagonda Patil on 18 March, 2011

Equivalent citations: AIR 2013 (NOC) 331 (KAR.) (DHARWAD BENCH), 2013 (1) AKR 483

Bench: K.L.Manjunath, H.N.Nagamohan Das

RF/X No,H11/2005

IN THE HIGH COURT OF KARNATAKA
CIRCUIT BENCH AT DHARWAD

Dated this the 18m Day of March 201341

Present

THE HON'BLE MR.JUSt1cE:v'K.'L;1'»z;§+1\i,;u§i.§§%1*1::VVV:_ '
and. i , _
THE HON'BLE MR.JUSTICEe<'euI::i;N.NA;GAMdFfAiV.VJfiAS;'

Regular Flrs':rAppeai Neç; .1 1.1 /2005

BETWEEN:

1.

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E " Vfijstrict Belgaum.

Sri Mahaveef

Shanta'gd"'yda..Patili, V' »
aged 45 y_eeL:r__sg_ Resi'd.e"nit- Qf"'1'/iarigijr,
E
District Béigautrifi -. " -

Smt. Devaki Bai;-»W "c»__S"h'élntappa
Shar1thagOwd_a Rafi]

si;jC"e _<.:lecea':::ed' represented by her
L:Rs,_:appellafit~N--e3. 1 and 3.

Qt smepgrlmasai Rekha
" _ V"'J\1)/0VV'Dé_tya;1;e:hd Patil of
1f_}ijawa.re,.V_aged 35 years

New "3f€S"iC1€I'l'l'f of Mangur
vmage, Taluka Chikodig,

RF/\ N<i).l l l l/2005

This regular first appeal is filed under Section 96 of the Code of Civil Procedure against the judgment and decree dated 27.06.2005 passed in O.S.No.34/L,99~?'iQn the file of the Civil Judge (Sr. Dn.), Chikodi, the suit for partition and separate possession;

This regular first appeal C01"i1'l"fig. ii day, K.L.Manjunath, J, delivered the following judgment: ' A

JUDC\$1\<I.:Ei:)NT

The legality and the judgment and decree dated 27.06.2005 passed in O.S.No.34/L,99~?'iQn the file of the Civil Judge (Sr. Dn.), Chikodi, the suit for partition and separate possession;

in this paragraph.

2. plaintiffs and respondents

are the plaintiffs and respondents before the Trial Court. in this

judgment, for convenience, the parties are referred to

as follows: before the Trial Court.

3i;' - Plaintiffs contend that the common proponent

Ganesh Ganapathi had two sons by name

"Tulajagonda and Shantagowda {5}} Shanta. After the

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demise of common proponent Ganesh and his wife Lakshmi Bai, his two sons Tulajagonda and Shantagowda succeeded to the schedule other properties and family. In the year 1944 the two sons and their families in respect of some other properties: '§:A'.'~p./Mitilpr 13..eirti-ti:.,Cm_.i 1944 both the brothers were The plaintiff schedule properties are in the joint of both the brothers

Tulajagonda and Shantagowda V

4. Shantagowda was married

p_ to orile Housabeii'; «Since there were no issues out of this
weid=iock;'Sh,eil'itagouda divorced his first wife Housabai
eirrfi,...f'Ilariri.e?dgi..ihe second plaintiff herein. Plaintiff No. i
irupand pieiiiiitiif No. 3 are the children born to Sharitagouda
his second Wife Deval<.ibai~pIaintiff No. 2 herein.

The elder brother Tuiajagonda died leaving behind his
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only son defendant No.1 herein. Defendant Nos. 2 and 3
are the children of defendant No.1.

defendants are only formal parties.

5. After the demise of
are the only legal representatives of the
his estate. The plaintiffs from the
defendants. Since to partition
the plaint scheduled filed 08.
No. 34/ 19?? separate possession of

their half..share'ir:gthe schedule properties.

6. 1 to 3 filed written

state's interest contending that plaintiff No. 2 is not

Shantagouda and plaintiff Nos. 1 and 3 are
not their children. It is contended that Shantagouda has

not his wife Housabai. After the demise of

f.fShantagouda on 13.07.1963 and his wife Housabai on

05.03.1965 the defendant Nos. 1 to 3 are the only

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surviving legal representatives who have succeeded to
the 1/12 share of Shantagoucla and they are in possession
and enjoyment of the same. On these
defendant Nos. 1 to 3 opposed
The defendant Nos. 4 to 9
statement. On the basis of the following statement, it

framed the following issues for consideration, viz.

i. Whether the Plaintiff's claim is validly made: the
Plaintiff's claim is that the defendant Nos. 1
got plaintiff Nos. 1

.... 3. The defendant Nos. 1 to 3 claim that the
Plaintiff's claim is not validly made.

ii. Defendants prove that
the Plaintiff is the legally wedded wife of
Shantagoucla and she has died

the Plaintiff?

iii. Whether the plaintiffs prove that they
are in joint possession and enjoyment
of the suit properties along with the

defendants?

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the plaintiff schedule properties with defendant Nos. 1 to
3 and they are not entitled for partition. Consequently,
under the impugned judgment the
dismissed the suit of plaintiffs. Hence,

the plaintiffs.

8. We heard arguments from both sides and
perused the entire pleadings. The Trial Court

records. The facts are as follows: The Plaintiff's claim is that the defendant Nos. 1 to 3 claim that the Plaintiff's claim is not validly made.

Consideration

ii. Whether the Plaintiff's claim is validly made: the
Plaintiff's claim is that the defendant Nos. 1

" pp No.' ..ij,and*~._'Shantagouda is a void
ilrrrarriagei V V

, ilg, .%ftf*llether the plaintiff Nos. 1 and 3 are

V'2,,_:iil.egitimate children entitled to claim

. is-ltiare in coparcenary property?

" Whether the judgment and decree of

the Trial Court requires interference?

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RI?"/\ Nol l l l ,/2005

On Point No.1

9. It is not in dispute that Shantagoudall':rriarried.
Housabai. Plaintiffs contend that
his wife Housahai and thereafter;iniari'ied._plain:tiflihloflw
ln support of this contentio'n
produced any documentary}.:eV'idenc"e.1 i that
Shantagouda divorced:_lfious'ahajf":if otheruihand the
Trial Court on appreciatiioine pleadings and
evidence on lzelid was no divorce
between' This finding of the
Trial Cour_t evidence on record and there

is no justifiable ground tointerfere with the same.

DurinHgi""the subsistence of first marriage

not entitled to take a second wife in

rnar.riage.. lffiough the oral and documentary evidence on

i.i"".__ii"recordi vshow that Shantagouda and plaintiff No. 2 lived

o :.ofg--et_her as husband and wife the same is a Void

= mitarriage. Therefore there is no valid marriage between

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i ' ehiidf'en: ,

RF/\ No.11 1 l/2005

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Shantagouda and plaintiff No. 2. Accordingly, point No. 1

is answered in affirmative.

On Point No.2

11. Plaintiff Nos. 1 and 3

children of Shantagouda

the school leaving certificate, the birth certificate, Ex.P.16-voters list, marriage

yadi, establish the children

of Shantagouda. 10. 2. Since the

marriage of the plaintiff is a

void born to them, that is,

plaintiff to be held as illegitimate

'is not the fault of the child to be born

'V illegitimate. There is no justification to treat illegitimate

if the child is not on par with the legitimate children.

' Illegitimacy casts a stigma on the children and they have

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to suffer discrimination in social and economic status. In order to correct this injustice the legislature, in the wisdom, amended Hindu Marriage Act by Section 16 by Act No. 68 of "

reads as under:

" 16. Legitimacy of children of and voidable marriage. (1) Notwithstanding anything

void under any law for the time being in force, a child born to a woman who is married to a man at the time of his birth shall be deemed to be a legitimate child of that man unless it is proved that the child was born to her by a man other than the husband of the woman at the time of his birth.

marriage shall be deemed to be a legitimate child of that man unless it is proved that the child was born to her by a man other than the husband of the woman at the time of his birth. (Amendment 1976 (68 or 1976) and jwghgetheir not "a decree of nullity is granted

"ii.lli:iHi\\g.,/respectxHof""'thiat marriage under this Act
or not the marriage is held to
i?oid"iotiheru7ise than on a petition under

this at."

it A reading of Section 16 of the Hindu Marriage

Act specifies that illegitimate children are to be treated as

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legitimate children. Thus the status of legitimacy was
confirmed on the children born out of a Void
Further the property rights are conferred on
children. When illegitimate children _are'' "
legitimate children then they ar\$1_@lqt'i'tleid
rights, status and i"*i.;l'e*giti'mate"Vii
children. When legitimate';.--ehildre.n ar'e*v..Aen,titled for
succession and inheritance children
are also entitléciifoif no reason as to
why the treated as legitimate

shall beiidienieicl i=ight"of sticcession or inheritance.

l4ii'7Fh0Liigllip'l.airiti'fiiilWl0S. 1 and 3 are illegitimate

child_reinrA.they treated as legitimate under Section 16

}jiii7id.iiii"~--l\/'larriage Act. When plaintiff Nos. 1 and 3

lezgitimate children then they are entitled to

j suceedfl inherit the property of their father

l..fShan.tag"oudai It is not in dispute that Shantagouda is

' eiiitied for half share in the plaint schedule properties,

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Shantagouda died on 13.07.1963 and his wife Housabai died on 05.03.1965. Therefore the plaintiff 3 are the only legal representatives who have the estate of deceased Shantago__u.da_.' Nos. 1 and 3 are entitled for schedule properties. i T V

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15. The rial Col..1_'l\$ft'¢ this legal position the suit of the plaintiffstw the Trial Court is contrary Marriage Act. Therefore the impugnedv by the Trial Court Calls for in_§tefrference;A l

C reasons stated above, the following:

ORDER

The appeal is hereby allowed. The judgment and decree of the Trial Court dated §/ RF/X No, 111 l/2005 27.06.2005 in o.8. No. 34/1997 passed by the Civil Judge (Senior Division) at is hereby set aside. The suit of OS. No. 34/1997 is decreed. appellant Nos.1 and 3 share in the plaint seheidtile so also the defen.dantsi---aiAe':--_em;itle.di' hdlf share.

Re.gisi\$ry_VtoV the pf€li'I'11i'hary decree accord-i.nglyg_V V o P.étrtile.s to. beéir th.ei'i"--l-nolxgvn costs. Sd/~ I JUDGE Sd/-

JUDGE " 2 A .. fl-Lrs